

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #09	CCRB Case #: 201609031	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/15/2016 2:15 PM	Location of Incident: Rockaway Parkway & East New York Avenue	18 Mo. SOL 4/15/2018	Precinct: 67		
Date/Time CV Reported Sat, 10/15/2016 2:15 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/27/2016 11:06 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Katrina Forrester	3529	941207	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Dean Adams	3742	937942	NARCBBS
2. SGT Pegeen Roberto	04563	935606	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Katrina Forrester	Abuse: Detective Katrina Forrester stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . DT3 Katrina Forrester	Discourtesy: Detective Katrina Forrester spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . DT3 Katrina Forrester	Abuse: Detective Katrina Forrester refused to provide her name and shield number to § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 15, 2016, § 87(2)(b) filed this complaint with the Internal Affairs Bureau via telephone, generating IAB log number 2016-36733. On October 27, 2016, IAB forwarded this complaint to the CCRB.

On October 15, 2016, § 87(2)(b) was driving north on Rockaway Parkway between Winthrop Street and Clarkson Avenue in Brooklyn when he was cut off by an unmarked police vehicle. § 87(2)(b) shouted "asshole" at the vehicle as he drove past it, without knowing it was a police vehicle. Detective Katrina Forrester of Narcotics Borough Brooklyn South pulled over § 87(2)(b)'s vehicle at Rockaway Parkway and East New York Avenue and approached his window (**Allegation A**). § 87(2)(b) a New York City Transit Authority bus driver who was in full uniform at the time, confronted Det. Forrester about her cutting him off. Det. Forrester allegedly said, "Oh, so I'm an asshole?" and used the word "asshole" to describe bus drivers like § 87(2)(b) who she claimed frequently cut people off (**Allegation B**). § 87(2)(b) asked Det. Forrester for her name and shield number, and Det. Forrester allegedly replied by asking § 87(2)(b) for his § 87(2)(b) and did not provide her name or shield number to § 87(2)(b) (**Allegation C**). § 87(2)(b) was released with a warning and was not summonsed or arrested as a result of this incident.

This case was returned from the Mediation Unit on January 20, 2017 § 87(2)(g), § 87(2)(b). There is no video footage in this case.

Mediation, Civil and Criminal Histories

- § 87(2)(b) accepted mediation during his telephone statement on November 3, 2016, and the case was forwarded to the Mediation Unit on November 15, 2016. On January 20, 2017, this case was returned to the undersigned from the Mediation Unit § 87(2)(g), § 87(2)(b).
- As of February 16, 2017, § 87(2)(b) has not filed a notice of claim regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) is involved (Board Review 03).
- Det. Forrester has been a member of the NYPD for 10 years and is the subject of 17 prior CCRB allegations involving eight cases with no substantiated allegations (Board Review 04).
 - In case number 200917335, Det. Forrester was the subject of Abuse: Vehicle Stop, Abuse: Vehicle Search, Abuse: Frisk, and Abuse: Search (of person) allegations. The Vehicle Stop and Frisk allegations were closed as substantiated, while the Vehicle Search and Search (of person) allegations were closed as unsubstantiated. The CCRB recommended charges, and the NYPD imposed a penalty of instructions.

Findings and Recommendations

Explanation of Subject Officer Identification

- Det. Forrester was driving the police vehicle and stated that she made the decision to pull § 87(2)(b) over because he cut her off without using his turn signal. § 87(2)(g)

Allegation A – Abuse of Authority: Detective Katrina Forrester stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: Detective Katrina Forrester spoke discourteously to § 87(2)(b)

Allegation C – Abuse of Authority: Detective Katrina Forrester refused to provide her name and shield number to § 87(2)(b)

§ 87(2)(b) stated that as he was driving in the left lane of Rockaway Parkway, a two-lane road with turning lanes for left turns, he was cut off by Det. Forrester as she moved from the right lane to the left turning lane. § 87(2)(b) pulled beside the Det. Forrester's vehicle as it was stopped in the turning lane and shouted "asshole" out his window as he passed the vehicle, without realizing that it was a police vehicle. Det. Forrester then pulled § 87(2)(b) over at the intersection of Rockaway Parkway and East New York Avenue. Det. Forrester approached § 87(2)(b)'s window and saw that he was wearing a § 87(2)(b) uniform. Det. Forrester allegedly said, "Oh, I'm an asshole?" and described § 87(2)(b). § 87(2)(b) asked Det. Forrester for her name and shield number, and in response, Det. Forrester allegedly told § 87(2)(b) that she would give him her shield number if he provided his § 87(2)(b), which he refused to do. § 87(2)(b) stated that Det. Forrester held the edge of her bulletproof vest with her right arm, which obscured his view of her shield near the center of her shirt. § 87(2)(b) called 911 to file a complaint about this encounter, and then Det. Forrester released § 87(2)(b) without a summons and allegedly without providing her name and shield number to him.

Det. Forrester stated that she was in the turning lane preparing to turn left onto Rutland Road, but changed her mind and decided to go straight instead, and then moved the police vehicle into the left northbound lane. § 87(2)(b) drove up to the passenger side of her vehicle and shouted something, but she was unable to hear what § 87(2)(b) said. § 87(2)(b) then passed and cut off the police vehicle without using his turn signal, which prompted Det. Forrester to pull him over. Det. Forrester approached § 87(2)(b)'s window and explained why she pulled him over. § 87(2)(b) asked Det. Forrester for her name, which Det. Forrester provided verbally, along with her shield number. Det. Forrester stated that her shield was clearly displayed on a chain around her neck and that she did not hold her arm over her shield. Det. Forrester stated that § 87(2)(b) called her an "asshole" and said, "You did an asshole move." She denied using the word "asshole" in her conversation with § 87(2)(b). Det. Forrester released § 87(2)(b) with a warning and without a summons because he was a city employee.

Det. Dean Adams of Narcotics Borough Brooklyn South stated that Det. Forrester was moving to the right lane to turn right, but she decided to continue going straight on Rockaway Parkway at the last minute and moved back into the left lane. § 87(2)(b) pulled up to the police vehicle and yelled something, but Det. Adams did not hear what he said. § 87(2)(b) then cut in front of the police vehicle without signaling, and then Det. Forrester pulled him over. Det. Adams stood at the passenger side of § 87(2)(b)'s vehicle while Det. Forrester conversed with § 87(2)(b). Det. Adams saw that § 87(2)(b) had an § 87(2)(b) on his shirt, and once he

saw § 87(2)(b) he stopped paying attention to the conversation between § 87(2)(b) and Det. Forrester. Det. Adams did not know what was said in this conversation and was unable to recount any part of this conversation. Det. Adams stated that Det. Forrester did not use the word “asshole” at any point in her conversation with § 87(2)(b) and that § 87(2)(b) did not ask Det. Forrester for her name or shield number. Det. Adams did not know whether Det. Forrester recited her name or shield number to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Squad: 9

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date